

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2022-5844

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR REGISTRATION TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR CANDIDATE IN THE STATE OF COLORADO OF EMILY MAUREEN IZZO, REGISTRATION NO. (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Emily Maureen Izzo ("Applicant"), as follows:

1. By application dated May 6, 2022, Applicant applied for registration to practice as a licensed professional counselor candidate ("LPCC") in the State of Colorado ("Application").

2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").

3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2022-5844. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.

4. Applicant admits the following:

a. On or about May 6, 2022, Applicant applied for registration to practice as an LPCC in the State of Colorado and her registration request is currently pending.

b. On her Application, Applicant answered "yes" to the question which states: Within the past five years, have you engaged in any conduct or exhibited any behaviors that resulted in:

- i. Termination or suspension from school or employment?
- ii. A violation of workplace or academic conduct rules?

c. Applicant failed to act within the limitations created by a physical illness, physical condition, or behavioral, mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of section 12-245-224(1)(f)(II), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(f)(II) Fails to act within the limitations created by a physical illness, physical condition, or behavioral, mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.

6. By virtue of the admissions contained in paragraphs 4 and 5 above, Applicant specifically agrees to accept a registration subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by sections 12-245-214 and 12-245-226(3)(a), C.R.S., to grant Applicant a registration. Applicant consents to the following limitations to her registration within the meaning of section 24-4-104(11), C.R.S. Applicant acknowledges that by accepting this registration in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-245-214 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's registration to practice as an LPCC in the State of Colorado is hereby placed on probation for a minimum period of two (2) years, commencing from the effective date of this Order or the date Applicant's practice and therapy monitors are approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during anytime that Applicant is not practicing in this state and such period of probation shall resume at such time an Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as an LPCC in Colorado, is being monitored by practice and therapy monitors and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PSYCHOTHERAPY

11. During the period of probation, Applicant shall undergo psychotherapy with a mental health provider approved by the Board (“therapist”). Within 30 days of the effective date of this Order, Applicant shall submit, in writing, three (3) proposed therapists for the Board’s approval. Applicant shall include a program-approved therapist application from each potential therapist, with attached curriculum vitae or resume. The therapist shall meet the following criteria:

a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;

b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;

c. The therapist shall have no current or past financial or personal interest in Applicant or Applicant’s practice. Former employees and business associates fall under this provision.

12. Applicant must have a therapy monitor approved by the Board within two (2) months of the effective date of this Order. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until a monitor is approved. After the Board’s written approval of the therapist, Applicant and the therapist shall enter into a written contract for psychotherapy within 30 days. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until the written contract for therapy monitoring is executed.

13. The therapist shall conduct therapy and report to the Board in writing as follows:

a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of the therapist;

b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Applicant is able to practice with reasonable skill and safety for her clients and must send a copy of each report to Applicant. The therapist shall submit her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and

c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Applicant's therapist.

14. If, at any time, the therapist is of the opinion that Applicant is practicing as an LPCC in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her opinion. The therapist shall send a copy of such report to Applicant when s/he sends the report to the Board. Upon submission of such a report, Applicant shall immediately cease the practice as an LPCC.

15. Either Applicant or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Applicant does not have another Board-approved therapist prior to the termination, Applicant shall cease the practice as an LPCC until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Applicant and report to the Board in accordance with this Order.

16. Applicant cannot practice as an LPCC during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

PRACTICE MONITOR

17. During the period of probation, Applicant's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Applicant

shall submit, in writing, three (3) proposed practice monitors for the Board's approval. Applicant shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;

b. It is recommended that the practice monitor have a minimum of five (5) years of experience and has not been subject to professional discipline; and

c. The practice monitor shall have no current or past financial or personal interest in Applicant or Applicant's practice. Former employees and business associates fall under this provision.

18. Applicant must have a practice monitor approved by the Board within two (2) months of the effective date of this Order. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until a practice monitor is approved unless an extension is granted by the Board.

19. After the Board's written approval of the practice monitor, Applicant and the practice monitor shall enter into a written contract for monitoring within 30 days. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until the written contract for practice monitoring is executed unless an extension is granted by the Board. The practice monitor shall provide a copy of the written contract to the Board as a part of her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Applicant's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Applicant's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

20. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Applicant's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients and determine whether she/he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

21. Should the Board determine from the practice monitor's evaluation that Applicant cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability, or competence for practice, Applicant shall immediately cease any part of the practice that the Board determines, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Applicant must take and conditions Applicant must meet so that Applicant can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Applicant is not qualified, competent, and safe to practice. Once Applicant satisfies the Board that she is qualified, competent, and safe to fully practice, Applicant may resume full practice.

22. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month. Applicant and her practice monitor must review and discuss each of Applicant's active cases at least once every month in order to allow the practice monitor to be able to determine whether Applicant is practicing as an LPCC in accordance with generally accepted standards of practice and with skill and safety for her clients.

23. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first twelve (12) reports. After the submission of the first twelve (12) reports, unless otherwise ordered by the Board, the practice monitor shall submit her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

24. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

25. If at any time the practice monitor believes Applicant is not in compliance with this Order, is unable to practice with skill and safety to her clients or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Applicant. Upon submission of such a report, Applicant shall immediately cease the practice as an LPCC.

26. Applicant shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order,

the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Applicant shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

27. Applicant or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Applicant shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her monitoring and report to the Board in accordance with this Order.

28. Applicant will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

29. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

30. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

31. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

32. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

33. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

34. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

35. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

36. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

37. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

38. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

39. This Order shall be admissible as evidence at any hearing held before the Board.

40. This Order shall be a public record in the custody of the Board.

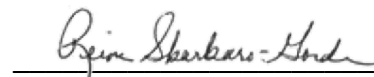
AGREED TO AND ACCEPTED BY:

APPLICANT


EMILY MAUREEN IZZO
REGISTRATION No. (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


REINA SBARBARO-GORDON
Program Director

Effective this 9th day of January,
2023.

CERTIFICATE OF SERVICE

This is to certify that I have duly served the within fully executed **STIPULATION AND FINAL AGENCY ORDER** upon all parties herein by electronic means or by depositing copies of same in the United States mail, first-class postage prepaid, at Denver, Colorado, this ___9th___day of ___January___, 2023, addressed as follows:

Emily Maureen Izzo
1100 Rossehl Ln
Montrose, CO 81401-5379
Email: em.izz868@gmail.com



Division Staff